



QBE Services Inc. Commercial General Liability Quote

Contract Parties

Insured: **Patrick Mechanical Limited**
PSL Patrick Sprack Limited
1887429 Ontario Limited
Greater City Concrete Works Limited
Greater City Concrete Scaffolding and Access a division of Greater City Concrete Works Limited
White Industrial Products Limited
Doug Venture's Inc.
5010875 Ontario Inc. o/a One Source Home Services
L. May MFG Inc.
1000141900 Ontario Limited
S2 Metal Fabricators Ltd

Mailing address: 119 Magill Street
Lively, ON P3Y 1K6

Operations of the insured: Mechanical contractor

Insurer: This quote is effected with certain Lloyd's Underwriters and provided in accordance with the authorization granted to QBE Services Inc. ("the Coverholder") by the **insurer** under the terms of the Binding Authority number noted below and granted to the Coverholder by the **insurer**. For purposes of the Insurance Companies Act (Canada), this document was issued in the course of the Lloyds underwriters' insurance business in Canada.

Registered address: QBE Services Inc.
6 Adelaide Street East, 7th Floor
Toronto, Ontario M5C 1W4

Binding authority number: B6006QBECAN2024

Broker name: Aon Reed Stenhouse Inc. Toronto Office

Broker address: 20 Bay Street, Toronto, ON M5J 2N9

Contract Details

Period of insurance: **From:** December 31, 2025 **To:** December 31, 2026
12:01am Local Standard Time at the mailing address of the **insured**

Quotation validity: This quotation is valid until December 31, 2025 subject to no material changes.

Premium basis: Flat

Subject to: Pricing based on GL & UMB being written together.
Aviva claim update prior to binding
Aviva's position with the underlying auto prior to binding
Confirmation of #trailer and if list includes "archived" auto

Minimum retained premium: 75%

Summary	Limit of Liability	Premium	Commission	QBE Line
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Quote Line	\$2,000,000	\$88,624	15%	100%
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Insured section – Comprehensive General Liability**Insured****Limit of liability**General liability cover – **bodily injury, personal injury, advertising injury or property damage**\$2,000,000 any one **occurrence****Products-completed operations**\$2,000,000 any one **occurrence** and in the aggregateIncluding **sub-limits of liability**

Claims made employee benefits

\$2,000,000 any one claim and in the aggregate

Contingent employers liability

\$2,000,000 any one **occurrence**

Forest fire fighting expenses

\$2,000,000 any one **occurrence** and in the aggregate

Medical expenses

\$10,000 any one **person** but
\$25,000 any one accident

Standard non-owned automobile (S.P.F.6)

\$2,000,000 any one accident

Standard hired automobiles (S.E.F. 94)

\$75,000 any one accident

Tenants legal liability

\$2,000,000 any one **occurrence**

Pollution - time element (120) hours

\$2,000,000 any one **occurrence****Endorsements****Sub-limit of liability**

ZCAAAO010114-ZI - Employers' liability

\$2,000,000 any one **occurrence**

ZCAABW010114-ZE - Mould, fungus, spores exclusion

\$250,000 any one **occurrence**

ZCADA010114-ZI - Contractors' Rework

\$250,000 any one **occurrence**

ZCADA010114-ZI - Contractors' errors and omissions

\$250,000 any one **occurrence****Deductible****Amount of deductible**

General liability cover

\$10,000 any one claim

Products-completed operations

\$10,000 any one claim

Claims made employee benefits

\$1,000 any one claim

Contingent employers liability

\$10,000 any one claim

Forest fire fighting expenses

\$1,000 any one claim

Standard hired automobiles (S.E.F 94)

\$1,000 any one claim

Tenants legal liability

\$1,000 any one claim

Pollution - time element (120) hours

\$10,000 any one claim

Endorsements**Amount of deductible**

ZCAAAO010114-ZI - Employers' liability	\$10,000 any one claim
ZCAABW010114-ZE - Mould, fungus, spores exclusion	\$10,000 any one claim
ZCADA010114-ZI - Contractors' Rework	\$10,000 any one claim
ZCADAF010114-ZI - Contractors' errors and omissions	\$10,000 any one claim

General Conditions**Commercial General Liability**

Territorial Limits:	Worldwide
Claim Jurisdiction:	Canada
Policy Law and Jurisdiction:	The law of that part of Canada where the head office of the insured is located.
Statutory cancellation due to non payment of premium:	15 days after delivery of registered mail to the insured's mailing address
Cancellation for reasons other than non payment of premium:	90 days after delivery of registered mail to the insured's mailing address
Currency:	CAD

Policy wording reference: [QBE Broad Form Wording PCAB050123](#)

Basis of quotation: Please note that this quotation provides a representative summary of the terms offered by QBE but that no cover is given.

The above quotation is based on the information disclosed in the submission provided for quotation. By accepting the terms of this offer, it is warranted that a full enquiry has been conducted of all proposed insureds and the information disclosed is true and correct.

You must inform us of any fact that may influence our decision to accept this risk or the terms upon which the risk is accepted including any known incident that may give rise to a claim or any change in the information provided arising before inception of any policy. Failure to so inform us may invalidate this insurance or any claim made under it. If in doubt as to whether a fact should be disclosed to us, please consult your broker.

For the purposes of the Insurance Companies Act (Canada), Lloyd's will take measures to ensure that the policyholder's liabilities in respect of risks will be insured in Canada in accordance with the criteria set out in OFSI's Advisory (2007-01-R1) entitled "Insurance in Canada of Risks" and that as a result, the related policy be issued in the course of Lloyd's insurance business in Canada.

QBE's Claims Handling: At QBE, we see claims as an essential part of the services we offer to our policyholders. For this reason, claims are managed by a dedicated team of experienced claims handlers and technical staff. Our claims team is empowered and has the authority locally to settle claims.

We welcome the opportunity to talk about your claims handling inquiry, including the use of a preferred third party adjuster or the establishment of a claims handling protocol. Please send your enquiry to our Claims Manager, David Storey at david.storey@ca.qbe.com or +1 (416) 682-5988 and we'd be pleased to schedule a call or meeting if required.

Underwriter: Ula Rybicka
Address: 6 Adelaide St. E. 7th Floor, Toronto, Ontario M5C 1W4
Underwriter email: ula.rybicka@qbe.com
Underwriter phone: 416-558-5739





QBE Services Inc. Endorsement Declaration

List of extensions and exclusions provided by this **policy**:

Standard policy extensions

Bodily injury, personal injury, advertising injury and Property damage
Products completed operations
Duty to defend
Claims made employee benefits
Contingent employers liability
Cross liabilities
Duty to defend - loss of earnings
Forest fire fighting expenses
Medical expenses
Standard non-owned automobile (S.P.F.6)
Standard hired automobiles (S.E.F. 94)
Tenants legal liability
Pollution - Hostile fire
United States of America Jurisdiction

Standard policy exclusions

Abuse, molestation and sexual abuse
Advertising injury - other than what is covered
Aircraft
Asbestos and silica
Automobile
Claim jurisdiction limits
Contractual liability
Damage to property
Deductible
Electronic data
Employee accidents
Employment practices dispute
Expected or intended bodily injury or property damage
Financial loss
Fines, penalties, punitive damages, multiple damages or exemplary damages
Fungus, mould, spores
Limit of liability – payments in excess
Nuclear risks
Overseas domiciled operations
Pollution – other than hostile fire
Professional services
Territorial limits – as stated in the declaration
War or terrorism
Watercraft
Workers compensation



QBE Services Inc. Endorsement Declaration

List of additional standard extensions, exclusions, conditions and/or definitions added to this policy:

Inclusions

ZCAAAO010114-ZI - Employers' Liability
ZCAACG010114-ZI - Mould, fungus, spores buy back
ZCADAE010114-ZI - Contractors' Rework
ZCADAF010114-ZI - Contractors' errors and omissions
ZCAACJ012722-ZC – Blanket Contractual Liability
ZCCAAA010114-ZI – Difference in Conditions – Wrap-Up Liability
Limited Professional Coverage – Means & Methods

Conditions

ZCAACL010114-ZC - Sub-contractor condition precedent (proof of insurance)

Exclusions

ZCFABP042820-ZE - Communicable Disease Exclusion
ZCMACP020921-ZE - Cyber and Data Exclusion



QBE Services Inc. Endorsement

Endorsement reference: ZCAAAO010114-ZI
Endorsement title: Employers' liability
Endorsement type: Inclusion

The following clause forms part of the 'General liability extensions' section to this **policy**

The **insurer** will pay on behalf of the **insured** all sums (including prejudgment interests) which the **insured** shall become obligated to pay as compensatory damages by reason of the liability imposed by law upon the **insured** or assumed by the **insured** under any agreement, including damages for care and loss of services because of **bodily injury** or **personal injury** resulting therefrom, sustained by any person and arising out of his employment by the **insured** during the **period of insurance**.

Provided that this extension excludes and does not cover **employees** other than those of a company incorporated pursuant to the laws of **Canada**.

The **insurer** shall not be liable for any amount in excess of the sub-**limit of liability** of \$2,000,000 which is always subject to the deductible of \$10,000.

Except as otherwise provided by this endorsement all terms, provisions and conditions of the **policy** shall have full force and effect.

QBE Services Inc. Endorsement

Endorsement reference: ZCAACG010114-ZI
Endorsement title: Mould, Fungus, Spores buy back
Endorsement type: Inclusion

The following clause forms part of the 'General liability extensions' section to this **policy**

The Mould, Fungus, Spores exclusion attached to this **policy** is deleted and replaced by the following:

This **policy** shall not apply to:

- a) **bodily injury, property damage, personal injury** or medical payments or any other cost, loss or expense incurred by others, arising directly or indirectly, from the actual, alleged or threatened inhalation of, ingestion of, contact with, exposure to, existence of, presence of, spread of, reproduction, discharge or other growth of any **fungi** or **spores** however caused, including any costs or expenses incurred to prevent, respond to, test for, monitor, abate, mitigate, remove, cleanup, contain, remediate, treat, detoxify, neutralize, assess or otherwise deal with or dispose of **fungi** or **spores**; or
- b) any supervision, instructions, recommendations, warnings, or advice given or which should have been given in connection with a) above; or
- c) any obligation to pay damages, share damages with or repay someone else who must pay damages because of such **bodily injury** or **property damage** referred to in a) or b) above.

This exclusion applies regardless of the cause of the loss or damage, other causes of the injury, damage, expense or costs or whether other causes acted concurrently or in any sequence to produce the injury, damage, expenses or costs.

However, this exclusion shall not apply to **bodily injury** or **property damage** which results directly from a **products-completed operations** not otherwise excluded by this **policy**;

Provided that the insurer shall not be liable for:

- d) any amount exceeding the **sub-limit of liability** which is \$250,000 for any one occurrence and in the aggregate.
- e) the **deductible** which is \$10,000.

For the purpose of this endorsement, the following definitions are added:

Fungi includes, but is not limited to, any form or type of mould, yeast, mushroom or mildew whether or not allergenic, pathogenic or toxigenic, and any substance, vapour or gas produced by, emitted from or arising out of any Fungi or Spores or resultant mycotoxins, allergens, or pathogens.

Spores includes, but is not limited to, any reproductive particle or microscopic fragment produced by, emitted from or arising out of any fungi.

Except as otherwise provided by this endorsement all terms, provisions and conditions of the **policy** shall have full force and effect.

QBE Services Inc. Endorsement

Endorsement reference: ZCADA010114-ZI
Endorsement title: Contractors' Rework
Endorsement type: Inclusion

The following clause forms part of the 'General liability extensions' section to this **policy**.

The **insurer** agrees to pay on behalf of the **insured** all sums which the **insured** shall become legally obligated to pay for:

- a) the actual net cost of removing or replacing any completed work or product forming part thereof, supplied by the **insured** (excluding the cost of such product) which is in place and forms part of any type of structure, work or other property;
- b) the actual net cost of reinforcing or other remedial action where the removal and/or replacement of such work or products can be avoided by reinforcing or other remedial action;

provided that:

- i) the removal and/or replacement is made necessary by the determination that such completed **work** or **product** is defective as to the purpose for which it is intended, and has been rejected by the owner of such work or structure or by any municipal or other governmental authority having jurisdiction there over upon testing by an accredited independent testing agency, because it does not meet the contract specifications for strength;
- ii) the defect arose out of an error in design, prescription, manufacture, installation, blending, mixing or compounding of such **work** or **product**; and
- iii) the **insured** shall take all reasonable measures to mitigate the extent of the loss arising from the **work** or **product**.

Exclusions:

This insurance shall not apply to:

- i) any **work** or **product** forming part thereof supplied prior to the effective date of this endorsement;
- ii) wear, tear or gradual deterioration, corrosion, rust, dampness of atmosphere, extremes of temperature, moths, vermin or insects;
- iii) normal replacement, repair or maintenance;
- iv) express warranty unauthorized by the **insured**;
- v) loss of use of any property or delay in construction;
- vi) damages or expenses incurred by or on behalf of any **insured** without specific written approval of the **insurer**;
- vii) property damage resulting from erroneous ordering, erroneous delivery, mis-delivery or non-delivery of such **product**;
- viii) mechanical breakdown of any **insured's** equipment;
- ix) changes in the project specifications;
- x) failure or delay in fulfilling the terms of a contract or agreement; and
- xi) any resulting business interruption.

Limits of Liability

The limit of the **insurer's** liability for all damages arising out of the liability for cost of removal, replacement or repair of defective **work**, including **product** forming part thereof, in any one **occurrence** and in the aggregate for the **period of insurance** is limited to the amount described in the **policy declarations**, regardless of the number of:

- (a) **insureds** under this **policy**;
- (b) persons or organizations who sustain loss; or
- (c) claims made or suits brought on account of such loss sustained.



Deductible

Each individual claim for loss or damage shall be adjusted separately and from the total of each adjusted claim the sum as described in the **policy declarations** shall be deducted.

The Insurer may pay all or part of the **deductible** sum to effect settlement of any claim or suit, and the **insured** shall promptly reimburse the **insurer** for such sum expended.

The **limit of liability** for this coverage shall be part of and not in addition to the limit stated in the **declarations**.

Schedule limit of liability	\$250,000
Schedule Deductible	\$10,000

Except as otherwise provided by this endorsement all terms, provisions and conditions of the policy shall have full force and effect.

QBE Services Inc. Endorsement

Endorsement reference: ZCADAF010114-ZI
Endorsement title: Contractors' errors and omissions
Endorsement type: Inclusion

The following clause forms part of the 'General liability extensions' section to this **policy**.
It is hereby understood and agreed that:

Insuring agreement

The **insurer** agrees to pay on behalf of the **insured** all sums which the **insured** shall become legally obligated to pay as compensatory damages for faulty workmanship, material, or design or products including consequential loss resulting therefrom. The compensatory damages must have resulted from the **insured's** act, error or omission while acting in the capacity as contractor or from a defect in material or in a **product** sold or installed by the **insured** while acting in the capacity as contractor. The **insurer** will have the right and duty to defend any action seeking those compensatory damages, but, the **insurer's** right and duty to defend end when the **insurer** has used up the applicable **limit of liability** in the payment of judgements or settlements.

Claims-made provisions and territory

This coverage applies only to claims resulting from acts, errors or omissions or defects occurring in the **territorial limits**, provided such claims is first brought against the **insured** during the **period of insurance** and the **insured**, at the effective date of this **policy**, had no knowledge of such act, error or omission or defect which might result in a claim or action.

Limited extended reporting period

If coverage is not renewed at the end of the **period of insurance**, coverage may be extended for a 12 month period, subject to the following conditions:

- (a) such 12 month extended coverage will apply solely with respect to claims arising out of acts, errors or omissions first committed or defects which existed prior to the end of the **period of insurance**. Such claims must be reported prior to the expiration of the 12 month extended **period of insurance**; and
- (b) to extend the policy coverage the **insured** must give notice in writing within thirty days of the cancellation or expiry date of the **policy**, to the **insurer** or any of its authorized agents and remit full payment of the premium for this extended reporting period to the **insurer** within thirty (30) days of the cancellation or expiry date of the **policy**. Such additional premium will be charged at a rate of 25% of the original premium applicable to this coverage extension.

Exclusions

This coverage does not apply to:

- (a) insured's profit or expected profit.
- (b) estimates of probable construction costs, or costs estimates being exceeded; estimates of profit or return on capital.
- (c) any delay or failure to complete a contract or project, or complete a contract or project on time.
- (d) bodily injury.
- (e) claims made against the insured by a business enterprise (or its assignees) which is wholly or partly owned, operated or managed by the insured or which has directly or indirectly any interest in the ownership or management of the named insured.
- (f) claims made against the insured arising out of services performed by or on behalf of a joint venture of which the insured is a member, unless that joint venture is endorsed on the policy.

Limit of insurance

The **limit of insurance** stated in the **declarations** as applicable to each claim is the limit of the **insurer's** liability for all compensatory damages incurred as the result of any one claim insured hereunder, but each claim made shall be subject to the **deductible** amount stated in the **declarations** and the **insurer** shall be liable only for the difference between such **deductible** amount and the limit of insurance for each claim; the limit of such liability stated in the **declarations** as

accumulated is, including the extended reporting period, subject to the above provisions respecting each claim, the total limit of the **insurer's** liability for all compensatory damages **insured** hereunder.

The payment of any **deductible** amount by the **insured** shall not operate to reduce the limit of the **insurer's** liability.

The aggregate limit of insurance shall apply separately to each annual period this insurance is in force.

The inclusion herein of more than one **insured** shall not operate to increase the limit of **insurer's** liability.

Any claim or aggregation of claims resulting from any one act, error or omission or defect will be considered one claim and will be deemed to have been made at the time the first of those claims is made against any **insured**.

Deductible

In the event of a claim the applicable **deductible** stated in the **declarations** shall be deducted from the amount of each claim when determined, and the **insurer** shall be liable for loss only in excess of the amount deducted.

The **insurer** may pay any part or all of the deductible amount to effect settlement of any claim and, upon notification; the named **insured** shall promptly reimburse the **insurer** for the **deductible** amount paid by the **insurer**.

Additional conditions

When the **insured** becomes aware of any act, error or omission or defect, the **insured** or someone on the **insured's** behalf shall give written notice thereof to the **insurer** or any of its authorized agents as soon as practicable. Such notice shall contain particulars sufficient to identify the insured and also reasonably obtainable information respecting the time, place and circumstances of the act, error or omission or defect.

If claim is made or suit is brought against the **insured**, the **insured** shall immediately forward to the **insurer** every demand, notice, summons, or other process received by the **insured** or the **insured's** representative.

Except as otherwise provided by this endorsement all terms, provisions and conditions of the Policy shall have full force and effect.



QBE Services Inc. Endorsement

Endorsement reference: ZCAACJ012722-ZC
Endorsement title: Blanket Contractual Liability
Endorsement type: Condition

The following clause forms part of the 'General terms and conditions' section to this policy:

Contractual Liability

1. **Bodily Injury or Property Damage** for which the **Insured** is obligated to pay damages by reason of the assumption of liability in a contract or agreement.
2. This exclusion does not apply to liability for damages:
 - a. Assumed in a contract or agreement that is an **Insured** Contract provided the **Bodily Injury or Property Damage** occurs subsequent to the execution of the contract or agreement. Solely for the purpose of liability assumed in an **Insured** Contract, reasonable attorney fees and necessary litigation expenses incurred by or for a party other than an **Insured** are deemed to be damages because of **Bodily Injury or Property Damage**, provided:
 - (i) Liability to such party for, or for the cost of, that party's defence has also been assumed in the same **Insured** Contract and
 - (ii) Such attorney fees and litigation expenses are for defence of that party against a civil or alternative dispute resolution proceeding in which damages to which this insurance applies are alleged;
 - or
 - b. That the **Insured** would have in the absence of the **Insured** Contract or agreement.

Except as otherwise provided by this endorsement all terms, provisions and conditions of the **policy** shall have full force and effect.

QBE Services Inc. Endorsement

Endorsement reference: ZCCAAA010114-ZI
Endorsement title: Difference in Conditions - Wrap-up Liability
Endorsement type: Inclusion

The following clause forms part of the 'General liability extensions' section to this **policy**

It is hereby understood and agreed that:

This **policy** shall not apply to the **insured's** operations in connection with any project for which Wrap-up Liability Insurance policy has been issued and on which the **insured's** interests are included; except as hereinafter provided:

- a) to the extent that the said Wrap-up Liability **policy** is more restrictive in form, wording or otherwise, this **policy** shall be considered primary insurance and shall cover any and all deficiencies as may exist between this **policy** and any other valid and collectible insurance, subject always to the Insuring Agreements, Conditions, Definitions and Exclusions of this **policy** and any endorsement attached thereto;
- b) except as provided in a) above, this **policy** shall apply as excess insurance only in respect to such operations and shall in no event be considered primary or contributing insurance;
- c) where the amount of any **deductible** in this **policy** is less than the amount of **deductible** in such Wrap-up Liability Insurance, to pay the difference between said respective deductibles. However, the **insurer** shall not be liable for any amount under this extension unless the deductible of the Wrap-up policy is \$2,500 or more;
- d) **Products-Completed Operations Hazard** as defined shall apply upon the expiry of a Wrap-up Liability **policy** (or any similar form of Liability Insurance).

The **insured** shall report separately the receipts derived from jobs or projects insured under a Wrap-up Liability Policy (or any similar form of Liability Insurance) so that the premiums may be adjusted.

As used in this endorsement, Wrap-up Liability means specific liability insurance that protects the **insured**, provided by any owner or anyone acting on his behalf for the purpose of providing liability insurance protection on a combined basis for the owner and the majority of contractors, subcontractors and others engaged on a specific construction project.

Except as otherwise provided by this endorsement all terms, provisions and conditions of the **policy** shall have full force and effect.



QBE Services Inc. Endorsement

Endorsement title: Limited Professional Coverage – Means & Methods
Endorsement type: Condition

This Endorsement modifies insurance coverage provided under the Commercial General Liability policy.

The following is added to Section 2.4 General Liability limitations and exclusions, part 2.4.21 Professional Services.

"Professional Services" do not include services within construction means, methods, techniques, sequences and procedures employed by you in your capacity as a construction contractor in connection with your operations..

Except as provided herein, all the terms and conditions of this policy shall have full force and effect.



QBE Services Inc.

Endorsement

Endorsement reference: ZCFABP042820-ZE
Endorsement title: Communicable Disease Exclusion
Endorsement type: Exclusion

1. Notwithstanding any provision to the contrary within this policy, this policy does not cover all actual or alleged loss, liability, damage, compensation, injury, sickness, disease, death, medical payment, defence cost, cost, expense or any other amount, directly or indirectly and regardless of any other cause contributing concurrently or in any sequence, originating from, caused by, arising out of, contributed to by, resulting from, or otherwise in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease.
2. For the purposes of this endorsement, loss, liability, damage, compensation, injury, sickness, disease, death, medical payment, defence cost, cost, expense or any other amount, includes, but is not limited to, any cost to clean-up, detoxify, remove, monitor or test for a Communicable Disease.
3. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:
 - 3.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and
 - 3.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and
 - 3.3. the disease, substance or agent can cause or threaten bodily injury, illness, emotional distress, damage to human health, human welfare or property damage.

Except as otherwise provided by this endorsement all terms, provisions and conditions of the **policy** shall have full force and effect.

LMA5396

17 April 2020

QBE Services Inc. Endorsement

Endorsement reference: ZCMACP020921-ZE
Endorsement title: Cyber and Data Exclusion
Endorsement type: Exclusion

The following clause forms part of the exclusions' section to this **policy**.

1. Notwithstanding any provision to the contrary within this **policy** or any endorsement thereto, this **policy** does not apply to any loss, damage, liability, claim, fines, penalties, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any:
 - 1.1. "Cyber Act" or "Cyber Incident" including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any "Cyber Act" or "Cyber Incident"; or
 - 1.2. loss of use, reduction in functionality, repair, replacement, restoration, reproduction, loss or theft of any "Data" including any amount pertaining to the value of such "Data"; or
 - 1.3. complaint, investigation, or proceedings arising directly or indirectly from a breach or alleged breach of the Personal Information Protection and Electronic Documents Act, the Canada Anti-Spam Legislation, any Privacy Act, or any similar Canadian, Provincial or Territorial statute or regulation,

regardless of any other cause or event contributing concurrently or in any other sequence thereto.
2. In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.
3. This endorsement supersedes any other wording in the **policy** or any endorsement thereto having a bearing on a "Cyber Act", "Cyber Incident", or "Data", and, if in conflict with such wording, replaces it.

Definitions For the purposes of this Exclusion:

4. "Computer System" means any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility, owned or operated by the **Insured** or any other party.
5. "Cyber Act" means an unauthorized, malicious or criminal act or series of related unauthorized, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any "Computer System".
6. "Cyber Incident" means:
 - 6.1. any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any "Computer System"; or
 - 6.2. any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any "Computer System".
7. "Data" means information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a "Computer System".

Except as otherwise provided by this endorsement all terms, provisions and conditions of the **policy** shall have full force and effect.

LMA5528 (amended)



QBE Services Inc. Endorsement

Endorsement reference: ZCAACL010114-ZC
Endorsement title: Sub-contractor Condition Precedent (proof of insurance)
Endorsement type: Condition

The following clause forms part of the 'General terms and conditions' section to this **policy**

It is a condition precedent to the **insurer's** liability that:

- a) all sub-contractors performing work for the **insured** must carry a minimum of \$1,000,000 limit of liability for Commercial General Liability Insurance; and
- b) prior to any work involving a sub-contractor, the **insured** must use their best endeavours to obtain proof of a certificate of insurance showing the above requirement.; and
- c) such proof is revalidated every twelve (12) months throughout the duration of their contract with the **insured**.

Except as otherwise provided by this endorsement all terms, provisions and conditions of the **policy** shall have full force and effect.